POLICYMAKER & INSTITUTIONAL PORTAL

Statement of Constitutional Authority

The enumerated-powers basis for the NSRA and its review status

40 titles · Title 0 findings · Section 205 severability

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Enumerated powers

Section 002(4) grounds the Act in the Commerce Clause (Art. I, §8, cl. 3), the Spending Clause (Art. I, §8, cl. 1), the Necessary and Proper Clause (Art. I, §8, cl. 18), and the General Welfare Clause. The Act is drafted to withstand review under current doctrine, including West Virginia v. EPA (2022), Gundy v. United States (2019), and TransUnion LLC v. Ramirez (2021).

Nondelegation and major-questions safeguards

Mandatory trigger parameters are specified by Congress in Section 004 rather than delegated open-endedly to agencies, supplying an intelligible principle responsive to Gundy and to the major-questions concerns in West Virginia v. EPA. Mechanical triggers and fixed technical thresholds constrain administrative discretion.

Procedural due process

Title XVIII engineers pre-deprivation notice schedules to satisfy Mathews v. Eldridge: 45 days for financial clawbacks and penalties, 60 days for operational grid-power and infrastructure restrictions, and 180 days for corporate portfolio and asset divestments. Capital-flight locks require a 24/7 Administrative Law Judge judicial-verification warrant before engagement.

Standing and enforcement

Injury and causation are defined to satisfy TransUnion standing requirements. Enforcement authorities and any private rights of action are inventoried per title; the Act relies on strict-liability and mechanical-trigger architecture to limit discretion.

Severability

Section 205 establishes severability and a mandatory fallback to general appropriations: if a court strikes any single title, the remainder of the Act continues in full force, with a fallback appropriation protecting first-tier household benefits. For passage, the agenda is organized into five coordinated bills, each able to advance on its own and fund the next; at the individual-title level, dependencies are explicit — some titles stand alone, others must travel with their funding or enforcement.

Review status

Domain	Status
Constitutional authority statement & Title 0 findings	**Drafted · internally reviewed**
Severability architecture (§205)	**Drafted · internally reviewed**
Nondelegation & major-questions safeguards	**Drafted · internally reviewed**
Due process schedules (Title XVIII)	**Drafted · internally reviewed**
Specialist constitutional review	**External review requested**
Legislative counsel review	**Pending institutional review**

Internal completion does not imply external validation. External and legislative-counsel review are pending.

Evidence standard: Fiscal and impact figures are NSRA model estimates built on published CBO, JCT, OMB, GAO, Treasury, SSA, OECD, and peer-reviewed baselines — internally modeled and sensitivity-tested, not yet officially scored by CBO or JCT, which is pending and welcomed. Statutory parameters (e.g., the $35 insulin cap, the 50-unit corporate housing cap) are the text of the bill, not projections. TheAmericanDeal.org is an independent project of Santonio D. Sanders; materials are informational and non-partisan.